

Techclave · Boka

Legal & Compliance Policies

Consolidated draft for counsel review — last updated 2026-07-03

DRAFT — pending legal review. Placeholders (legal entity, registered address, contact emails) are shown as bracketed/to-be-confirmed values in `src/lib/legal/constants.ts` and must be finalized before publication. This document is provided for review and is not yet legal advice.

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Privacy Policy

Who we are

Boka is an AI front desk for service businesses. Over WhatsApp and Instagram, Boka runs customer conversations — answering questions, qualifying and capturing leads, recommending and selling services and products, and booking appointments, operated by Techclave (Techclave (legal entity to be confirmed)). This policy explains how we handle personal data. We aim to comply with the EU/UK GDPR and the Nigeria Data Protection Act (NDPA). Contact us at privacy@boka.app.

Boka serves two groups: business customers ("tenants") who use the platform to run conversations, sell services and products, and take bookings, and the tenants' end-customers who message, buy from, and book them. For an end-customer's data (conversations, orders, bookings), the tenant is the data controller and Boka acts as a processor under our Data Processing Agreement.

Data we collect

- Account data: name, email, phone, business details, role.
- Booking data: appointments, services, staff assignments, customer contact details.
- Sales & lead data: inquiries, product/service interest, lead status and follow-ups.
- Order data: products purchased, quantities, amounts, and fulfilment details.
- Messages: WhatsApp/Instagram conversations processed to run the AI front desk (answering, recommending, selling, booking).
- Payment data: handled by our payment processors; we do not store full card numbers.
- Usage & device data: analytics events and error logs (analytics only with your consent).

How we use data and our legal bases

- To provide the service, process bookings, and fulfil product orders — performance of a contract.
- To operate AI messaging, sales conversations, lead capture, and reminders — legitimate interests / contract.
- To process payments for bookings and product purchases — contract and legal obligation.
- Product analytics and session replay — only with your consent.
- Security, fraud prevention, and error monitoring — legitimate interests.

AI processing

Boka uses automated AI to read and respond to customer messages — answering questions, recommending and selling services and products, capturing leads, and booking appointments. Customers are told they are speaking with an automated assistant and can reach a human. We do not use messages to make solely-automated decisions with legal or similarly significant effects without a human in the loop, and we do not send special-category (e.g. health) data to AI providers.

Sharing & sub-processors

We share data with vetted service providers who process it on our behalf. See the full sub-processor list. Where data leaves the EU/UK, we rely on appropriate safeguards such as Standard Contractual Clauses.

Your rights

Subject to law, you may request access, correction, deletion, portability, restriction, and objection. You can request a data export or deletion by emailing privacy@boka.app. We respond within 30 days. Some records (e.g. transaction history) may be retained where law requires.

Retention

We keep personal data only as long as needed for the purposes above or as required by law, then delete or anonymize it.

International users & representatives

Boka is operated from outside the EU/UK. We have not currently appointed an Article 27 representative; we monitor EU/UK usage and will appoint one if it becomes required. EU/UK users may contact us at privacy@boka.app.

Children

Boka is not directed to children. Accounts require users to be at least 16 (or the age of digital consent in their country). See our Terms.

Changes & contact

We will post updates here and revise the date above. Questions or complaints: privacy@boka.app. You may also complain to your local data protection authority.

Terms of Service

Overview

These Terms govern use of Boka. Part A applies to business customers ("tenants") who subscribe to Boka. Part B applies to end-customers who book or message a tenant through the platform. By using Boka you agree to the applicable part.

Part A — Business (tenant) terms

- **Account & eligibility:** you must provide accurate details and be authorized to bind your business.
- **Subscription & billing:** fees, billing cycle, and renewal are shown at purchase. Subscriptions auto-renew until cancelled; you can cancel self-serve at any time and retain access until the end of the paid period.
- **AI credits:** AI usage is paid from a prepaid credit wallet. Credits are prepaid, non-refundable for cash, usable only for Boka AI usage, and expire per the rules shown in your billing settings.
- **Selling services & products:** you may sell your own services and products through Boka. You set and are responsible for prices, descriptions, availability/stock, and the accuracy of your listings.
- **Your responsibilities (merchant of record):** you are the merchant of record for all payments your customers make through Boka — bookings and product purchases. You are responsible for delivering services, fulfilling and shipping product orders, honoring your own cancellation/refund/return terms, product quality and any warranties, complying with consumer-protection law (including distance-selling / right-to-return rules where they apply), handling customer disputes and chargebacks, and collecting/remitting applicable taxes. Boka only facilitates the payment to your account.
- **Returns policy (required if you sell products):** if you sell products through Boka, you must publish a clear, accurate returns/refund policy that is available to customers before purchase and that meets or exceeds the consumer rights available under applicable law (including any statutory right to cancel or return). You are solely responsible for honoring that policy and any mandatory returns/withdrawal rights.
- **Product safety & liability:** you are responsible for the safety, legality, quality, labelling, and description of the products you sell, and for any product-liability, warranty, or recall obligations. You must not sell prohibited, unsafe, counterfeit, or illegal items. You will indemnify Techclave against claims arising from the products you sell or the services you deliver.
- **Data:** you are the data controller for your customers' data; Boka processes it under our DPA.
- **Acceptable use:** you must follow our Acceptable Use Policy, including messaging-consent and anti-spam rules.
- **Termination:** either party may terminate per these Terms; we may suspend for non-payment or policy violations.

Part B — Customer terms (bookings & purchases)

- **Bookings & purchases:** when you book or buy through Boka, your contract for that service, appointment, or product is with the business you are dealing with, not with Boka. Boka provides the AI front-desk technology (conversations, sales, and booking).

- Payments: any deposit, booking fee, or product payment is collected on behalf of the business through our payment processors. Refunds, cancellations, and product returns are handled by the business per its policy. See Refunds & Cancellations.
- Automated messaging: you may interact with an automated AI assistant and can ask to reach a human. Standard messaging rates may apply.
- Your content: reviews and messages you submit are subject to our UGC Policy.

Disclaimers & liability

Boka is provided "as is." To the extent permitted by law, Techclave is not liable for the acts or omissions of tenants or their service delivery, and our aggregate liability is limited as set out in the applicable order or subscription agreement.

Products are sold by the business, not by Techclave. Techclave is a technology and payment-facilitation provider — it does not manufacture, supply, own, inspect, or sell any products offered through Boka, and is not a party to the sale. To the extent permitted by law, Techclave is not liable for the products themselves (including their safety, quality, fitness, description, delivery, or any product-liability claim); those responsibilities rest with the selling business. Nothing here limits liability that cannot be excluded under applicable law.

Changes & contact

We may update these Terms and will revise the date above. Questions: legal@boka.app.

Cookie Policy

What we use

- Essential cookies — required to sign in and run the platform. Always on.
- Analytics cookies — product analytics and session replay (PostHog) to improve the product. Set only with your consent.
- Error monitoring — Sentry helps us detect and fix faults; it runs as essential reliability tooling and is configured not to collect unnecessary personal data.

Your choices

On your first visit you can Accept all or Reject non-essential cookies via our consent banner. Analytics and session replay do not run until you consent. You can clear your choice by clearing this site's data in your browser, which will show the banner again.

More information

See our Privacy Policy for how we handle personal data, or contact privacy@boka.app.

Refunds & Cancellations

Bookings paid to a business

When you pay a deposit or fee for a booking, that payment is collected on behalf of the business you booked, which is the merchant of record. Refunds and cancellations for bookings are governed by that business's own policy. Boka facilitates the payment but does not set or fund these refunds. Please contact the business directly; we can help route your request if needed.

Products purchased from a business

When you buy a product through Boka, your purchase is from the business you bought from, which is the merchant of record. Returns, exchanges, and refunds for products are governed by that business's own returns policy and by any consumer rights you have under local law (for example, distance-selling / right-to-return rules). Boka facilitates the payment but does not set or fund product refunds. Contact the business directly; we can help route your request.

Business (tenant) subscriptions

Subscription fees for Boka are billed per the cycle shown at purchase. You can cancel self-serve at any time and keep access until the end of the paid period. Unless required by law, subscription fees already paid are non-refundable.

AI credits

AI credits are prepaid and non-refundable for cash. They can be used only for Boka AI usage and expire per the rules shown in billing settings.

Contact

Questions about platform billing: support@boka.app. See also our Terms of Service.

Acceptable Use Policy

Purpose

This policy applies to everyone who uses Boka. It exists to keep the platform safe, lawful, and trusted. Breaching it may lead to suspension or termination.

You must not

- Use Boka for anything illegal, fraudulent, or harmful.
- Send messages without the required consent, or send spam over WhatsApp, Instagram, SMS, or email.
- Violate WhatsApp/Meta or Instagram platform policies (including opt-in, messaging-window, and template rules).
- Upload or transmit malware, or attempt to breach security, scrape, or overload the service.
- Infringe intellectual-property or privacy rights, or post unlawful, abusive, or deceptive content.
- Misrepresent the automated nature of AI messaging where disclosure is required.

Messaging consent & anti-spam

Tenants are responsible for obtaining and recording valid opt-in before messaging customers, for honoring opt-outs, and for complying with applicable anti-spam law. Boka may suspend messaging that risks platform or legal violations.

Reporting & enforcement

Report violations to support@boka.app. We may investigate, remove content (see UGC Policy), and suspend accounts.

User-Generated Content Policy

What this covers

This policy applies to content users submit to Boka — including reviews, ratings, and messages sent through WhatsApp or Instagram. You are responsible for the content you submit.

Content rules

- Be truthful. Do not post false, misleading, or fake reviews.
- No unlawful, defamatory, harassing, hateful, or obscene content.
- No content that infringes others' intellectual-property or privacy rights.
- No spam, scams, or impersonation.

Moderation & removal

Boka and the relevant business may review, moderate, and remove content that breaches this policy or the Acceptable Use Policy. We may also remove content in response to valid legal requests.

Reporting & takedown

To report content or submit an intellectual-property/defamation notice, email legal@boka.app with the content location, the reason, and your contact details. We will review and act where appropriate.

Licence to display

By submitting a review, you grant Techclave and the relevant business a non-exclusive licence to display and distribute it in connection with the service. You can request removal of your own review at any time.

Data Processing Agreement (DPA)

Roles

This DPA applies where a business customer ("tenant") uses Boka to process personal data of its own customers. The tenant is the data controller and Techclave is the processor, acting on the tenant's documented instructions.

Scope of processing

- Subject matter: providing the Boka AI front-desk service — customer conversations, sales and lead capture, product orders, and bookings.
- Duration: for the term of the tenant's subscription.
- Data subjects: the tenant's customers and staff.
- Data types: contact details, conversation/message content, sales and lead data, product orders and purchase history, bookings, and related metadata. Tenants must not submit special-category data (e.g. health) unless separately agreed in writing.

Our obligations

- Process only on the controller's instructions and applicable law.
- Ensure personnel are bound by confidentiality.
- Apply appropriate technical and organizational security measures.
- Assist with data-subject requests and with security, breach, and impact-assessment duties.
- Notify the controller without undue delay after becoming aware of a personal-data breach.
- Delete or return personal data at the end of the service, subject to legal retention.

Sub-processors

The controller authorizes Techclave to use the sub-processors listed at /sub-processors. We impose data-protection terms on each and remain responsible for their performance. We will give notice of intended changes so the controller can object.

International transfers

Where personal data is transferred outside the EEA/UK, the parties rely on appropriate safeguards such as the Standard Contractual Clauses (and the UK Addendum/IDTA where relevant).

How to execute

To countersign this DPA for your organization, contact legal@boka.app. This page reflects our standard terms and will be superseded by any signed agreement between the parties.

Sub-processors

About this list

Boka uses the third-party providers below to process personal data on our behalf. We require each to provide appropriate data-protection commitments. We update this page when the list changes; see our DPA for notification terms.

Current sub-processors

- Supabase — Database, authentication, and file storage (USA / EU)
- Stripe — Card payment processing (USA / EU)
- Paystack — Payment processing and payouts (Africa) (Nigeria / South Africa)
- SendGrid (Twilio) — Transactional and notification email (USA)
- Twilio — SMS and voice notifications (USA)
- Meta Platforms (WhatsApp, Instagram) — Messaging channels for customer conversations (USA / EU)
- Evolution API provider — WhatsApp gateway connectivity (Varies by deployment)
- Google (Calendar) — Optional calendar synchronization (USA / EU)
- PostHog — Product analytics and session replay (consent-gated) (EU / USA (configurable))
- Sentry — Error and performance monitoring (USA / EU)
- LLM provider(s) — AI message understanding and drafting (no special-category data) (USA / EU)

Questions

Contact privacy@boka.app.

Accessibility Statement

Our commitment

Techclave aims to make Boka usable by everyone, including people who rely on assistive technologies. We target conformance with the Web Content Accessibility Guidelines (WCAG) 2.1, Level AA .

What we do

- Use semantic HTML and labelled controls so screen readers can navigate the app.
- Support keyboard navigation for core booking and messaging flows.
- Aim for sufficient colour contrast and resizable text.
- Provide text alternatives for meaningful non-text content.

Known limitations

We are actively improving accessibility and have not yet completed a full third-party audit. Some older screens and third-party embedded components (e.g. payment widgets) may not fully conform. We prioritise fixes on the public booking flow first.

Reporting a problem

If you encounter an accessibility barrier, please tell us — include the page and what happened — at support@boka.app. We aim to respond within a few business days and will offer an alternative way to complete your task where possible.

Data Retention Schedule

Principle

Techclave keeps personal data only as long as needed for the purpose it was collected, or as required by law, then deletes or anonymizes it. This page summarizes our default retention periods. It complements our Privacy Policy.

Retention by data type

- Account data (tenant + staff): for the life of the account, deleted on closure subject to legal holds.
- Bookings & customer contact: retained while the relationship is active; anonymized on an erasure request (personal fields stripped, the booking record kept).
- Messages (WhatsApp/Instagram): retained to run the AI front desk; deleted on erasure request.
- Sales & lead data: retained while the lead is active or being followed up; deleted or anonymized on an erasure request.
- Order & transaction records: retained for accounting/tax obligations (typically up to the period required by local law) with embedded personal data minimized.
- Analytics & logs: retained for a limited window for security and product improvement, then aggregated or purged.

Erasure & the financial-records exception

On a verified erasure request we anonymize or delete personal data across our systems. We keep transaction/booking records (with personal identifiers stripped) where retention is required for tax and accounting — this is a lawful exception to erasure, not a refusal to honour it. See how to make a request in our Privacy Policy.

Contact

Questions about retention: privacy@boka.app.